

# Sanjay Mishra v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 31 January 2023 · WRIT - C No. 611 of 2023 · **Second respondent to take Supply Code remedial measures within six weeks**

## HEADNOTE

On a pending representation alleging excessive electricity bills and seeking meter replacement and installment of dues, the High Court directed the second respondent to take remedial measures under the U.P. Electricity Supply Code, 2005, preferably within six weeks of production of a certified copy, without deciding the bill, the meter, or installments.

## FACTUAL SUMMARY

Sanjay Mishra, a practising advocate of the Allahabad High Court, was undergoing cancer treatment at Tata Memorial Hospital, Mumbai, at a stated expense of about Rs 30 lakh. He alleged that the electricity department had continuously raised bills of more than Rs 4,000 a month. An application dated 27 November 2018 for inspection and replacement of the meter was not acted upon by respondent no. 3. A representation dated 19 September 2022, asking for a meter change and permission to pay the dues in installments, was still pending.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005:: (not stated)

Remedial measures on a pending billing and meter representation

### HOLDING

The second respondent must take remedial measures under the U.P. Electricity Supply Code, 2005, on the representation dated 19 September 2022, expeditiously and preferably within six weeks of production of a certified copy. The direction follows the licensee's statement that such measures would be taken under the Code. The Court did not decide whether the bills were excessive, whether the meter must be replaced, or whether the dues may be paid in installments. ¶ 1

**FLAG** The petitioner invoked 'Section 5.6' of the U.P. Electricity Supply Code, 2005. The operative direction does not apply that number, and the Code is framed in clauses rather than sections.

## PRINCIPLE TAGS

**supply-code-remedial-measures** A pending representation complaining of excessive bills and seeking meter replacement and installment of dues is to be met by remedial measures under the U.P. Electricity Supply Code, 2005, within a court-fixed outer limit, without a merits finding on the bill. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE MONTHLY BILLS WERE EXCESSIVE, WHETHER THE METER HAD TO BE REPLACED, AND WHETHER THE DUES COULD BE PAID IN INSTALLMENTS

Left to remedial action under the Supply Code on the representation dated 19 September 2022. ¶ 1

### NOT DECIDED — MEANING AND APPLICATION OF THE PETITIONER'S 'SECTION 5.6' OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court directed measures under the Code at large and did not construe that number. ¶ 1

